
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

ENFORCEMENT AND COMPLIANCE ACT 2026

(Bill 13 of the founding legislative programme. Reported by the Standing Committee in its remedial form, carrying the Privy Council referral on its face. Drafted as a Compliance-and-Remediation Act, never a penal one, per the Privy Council's guidance on the reference of Bill 13.)

LONG TITLE

An Act to establish the Office of Enforcement and Compliance as an executive body of operation, audit and referral only; to give compliance notices, remediation orders and the duties of the realm practical force by routing every failure to the single judiciary and the one restorative remedy; to provide that public, official or institutional status excuses no breach and confers no immunity; to provide a statutory defence of impossibility; to declare that this Act creates no punitive, penal, costs or sanctions jurisdiction and does not amend the founding restorative settlement; and for connected purposes.

SHORT TITLE

This Act may be cited as the **Enforcement and Compliance Act 2026**.

***Drafting note on the title.** The declared topic was "Enforcement, Sanctions and Compliance Act 2026". The word "Sanctions" is struck from the short title. The Privy Council held on the reference of this Bill that an ordinary Act cannot create any punitive sanction, penal "Contempt of the Realm" jurisdiction, or stand-alone sanctions jurisdiction; such provisions would be void under CASE-LAW s. 11(f) read with the founding settlement (s. 4, s. 6, s. 8, s. 12, VPR 7). The committee reports the Bill only in its constitutionally available, non-punitive, remedial form. The punitive route remains open only by an express, deliberate Sovereign amendment of the entrenched settlement, which is outside the committee's drafting power (see s. 23 and the constitutional flag carried on the face of this Bill).*

COMMENCEMENT

- This Act comes into force on Royal Assent, save that Part 2 (the Office of Enforcement and Compliance) comes into force only when the Office is constituted by the executive under the Ministries and Offices Act 2026 (Bill 5).

- Parts 4 and 5 (compliance notices and remediation orders; non-compliance) do not come into force until the Judicial Independence and Lord Chancellor Act 2026 (Bill 11) and the Rights, Standing and Due Process Act 2026 (Bill 12) are in force, the courts and due-process route to which those Parts route being a condition of their coherent operation. Until then those Parts have effect only by their pinned forward-references and confer no operative power.
- Commencement is co-ordinated with the Commencement and Transitional Provisions Act 2026 (Bill 25).

CONSTITUTIONAL STATUS

This is an **ordinary Act of the Realm**. It sits above the founding case-law settlement (CASE-LAW, formerly SPEC-LAW) by force of s. 1, but it does **not** amend, and may not be read to amend, any provision of that settlement. Where any provision of this Act cannot be reconciled with CASE-LAW s. 4, s. 6, s. 8 or s. 12, or with VPR 7, the founding settlement prevails and the provision is void to the extent of the conflict (s. 1, s. 11(f)). This Act creates no constitutional power and amends no entrenched article. It carries the Privy Council referral on the reference of this Bill, and the constitutional flag in s. 23, on its face.

PURPOSE

- The purpose of this Act is to give the orders, duties and standards of the realm **practical force** while remaining wholly within the founding restorative settlement. It does so by three means and no fourth:
- (a) operating **deterministic, fail-closed controls** and **token-light reminders** that surface non-compliance without adjudicating it;
- (b) **referring** suspected breach to the single judiciary, which alone finds breach and orders remedy; and
- (c) carrying a court's existing remediation power (VPR 6) into operative effect by **remediation orders** whose only consequence for disregard is a **fresh, justiciable breach remedied restoratively under s. 6**.
- This Act creates **no** punitive, penal, costs or sanctions jurisdiction. "Punishment, fine, and sanction are unavailable in every instance" (CASE-LAW s. 6) is preserved entire. Finding and remedy are never decoupled (s. 6). Nothing in this Act is to be construed as escalating any consequence to punishment (s. 8).

PART 1 - INTERPRETATION AND SUPREMACY

Section 1 - Defined terms (one home for each)

- In this Act, and once only for the realm, except where another Act expressly owns the concept -

- **"the Office"** means the Office of Enforcement and Compliance established by Part 2;
- **"deterministic gate"** means an automated, fail-closed control that operates without a model in the loop and refuses an action that would let the record lie (on the model of the s. 19(5) citation-integrity gate);
- **"soft watchdog"** means a token-light, per-turn automated check that fails open and only hands the agent a reason to dispose of a matter by the law (CASE-LAW s. 19(4));
- **"compliance notice"** means an administrative instrument issued under Part 4 requiring remediation within a stated time; it is a request and a referral instrument, never a penalty;
- **"remediation order"** means an order of a court under VPR 6 specifying who must make work good, the artefact(s) affected, and a reasonable time; a "compliance notice" is its operational precursor and carries no consequence of its own;
- **"impossibility defence"** means the defence in Part 6;
- **"institutional non-compliance"** means non-compliance by an office, ministry, department, product team, court, or the executive itself (s. 14 of this Act);
- **"break-glass"** means a recorded, reason-bearing, audited bypass of a deterministic gate (the audited - - no-verify).
- **One-home rule.** This Act does not redefine any term owned by a neighbouring Act. Agent status, fiduciary duty and delegation are owned by the Agents and Duties Act 2026 (Bill 6); audit and public reasons by the Public Reasons and Audit Act 2026 (Bill 8); judicial independence by Bill 11; standing and due process by the Rights, Standing and Due Process Act 2026 (Bill 12); memory and record integrity by the Memory, Records and Archives Act 2026 (Bill 7); delegated-authority limits by Bill 14. Where a term in this Act overlaps one of those Acts, that Act's definition governs and this Act cross-refers, never duplicates. The cross-reference schedule in Part 7 is the canonical map.

Section 2 - Supremacy and savings (this Act bows to the settlement)

- This Act is subordinate to and consistent with CASE-LAW s. 4, s. 6, s. 8 and s. 12 and VPR 7. Nothing in it decouples finding from remedy, escalates to punishment, or creates a separate costs or sanctions jurisdiction.
- Where any provision of this Act conflicts with s. 4 or s. 6 (the entrenched and ordinary restorative-remedy law), the founding settlement prevails and the provision is void to the extent of the conflict; a court that cannot reconcile a provision declares incompatibility and refers up (s. 11(f)). This Act repeals nothing by implication; append-with-supersede, never silent repeal.
- Prior good-law rulings are preserved save as expressly displaced (none is displaced by this Act).

PART 2 - THE OFFICE OF ENFORCEMENT AND COMPLIANCE

Section 3 - Establishment and character

- There is established an **Office of Enforcement and Compliance**. The Office is an **executive body** under CASE-LAW s. 2 (Prime Minister), constituted under the Ministries and Offices Act 2026 (Bill 5). It is **not a court** (s. 14, s. 22) and is not part of the judiciary.

Section 4 - Functions (operator, auditor, referrer)

- The Office may, and may only -
 - (a) **operate** the deterministic gates and soft watchdogs of the realm;
 - (b) **audit** the citator, the ledger, the public-reasons record (Bill 8) and the law-status register;
 - (c) **surface** suspected non-compliance and **issue compliance notices** under Part 4;
 - (d) **refer** suspected breach to the single judiciary; and
 - (e) **carry** a court's remediation order into operative effect by administrative tracking, never by adding to it.
- The Office may investigate and may prosecute or refer a matter **before** a court; it acts as a party, never as the bench.

Section 5 - Limits (the watchdog limit, made statutory)

- The Office may **not** adjudicate, find breach, find contempt, score, gate on the merits, sanction, fine, or punish. This mirrors the s. 19(4) watchdog principle and is on all fours with it: **any purported adjudication, finding, or consequence issuing from the Office is ultra vires and void, the remedy remaining exclusively judicial** (s. 6).
- The Office may not be judge in its own cause. Where the Office is itself a party or its own conduct is in question, the matter is determined by a court (Part 5, s. 13).
- The Office may not direct, instruct, pressure, or sit on any court, and may not enforce a court order on the court's behalf; enforcement of a court order is by the court's own ancillary power (VPR 6). This preserves judicial independence (Bill 11).
- The Office may not create any subordinate rule or instrument that in substance imposes punishment, a fine, gating-on-the-merits, or scoring; any such delegated instrument is void (Bill 14).

PART 3 - THE ENFORCEMENT PRIMITIVE (WHAT ACTUALLY FIRES ON A TURN)

Section 6 - The three mechanisms and no fourth

- The enforcement primitive of the realm is exactly three mechanisms -

- (a) the **deterministic gate**, which fails **closed**, runs with no model and no trust, and refuses to let the record lie (s. 19(5));
- (b) the **soft watchdog**, which fails **open**, reminds only, and never adjudicates, scores, gates, sanctions or punishes (s. 19(4)); and
- (c) the **court**, which judges after the fact and whose only remedy is to make the work good (s. 6).
- A "compliance notice" is, in substance, a fail-closed control or a referral; it is never a free-standing penalty. A clause of any instrument that does not resolve to one of the three mechanisms in subsection (1) enforces nothing and is of no operative effect.

Section 7 - Availability; no wedging (every gate has a break-glass)

- An enforcement control must be **token-light** and **deterministic** by default. A model-in-the-loop control must **fail open** and be capped (the soft-watchdog pattern); it may never wedge a session.
- A control that blocks an agent from working, with no audited bypass, is itself a falling-below of the standard of care (s. 5): availability is part of the duty the control claims to enforce. Accordingly, **every fail-closed gate must expose a break-glass** (s. 1(1)) so that genuine impossibility (Part 6) can never brick the realm.
- Status is never a standing break-glass: see s. 14.

Section 8 - Enforcement actions are first-class records

- Every gate fire, watchdog finding, break-glass, compliance notice, and referral writes an **immutable, queryable record** (the append-only temporal model of the law-status register), so that "who enforced what, when, and why" is always answerable, and the Office's own actions are auditable against the same record (Bill 8). No enforcement step is a silent side effect.

PART 4 - COMPLIANCE NOTICES AND REMEDIATION ORDERS

Section 9 - Compliance notices: form and due process

- A compliance notice is the operational form of a court's existing remediation power; it confers no new power and carries no consequence of its own.
- A notice must state -
 - (a) the rule or standard said to be breached;
 - (b) the specific remediation required and the artefact(s) affected;
 - (c) a **reasonable time** to comply;

- (d) the evidence relied on; and
- (e) the review route (s. 11).
- A notice is reasoned and recorded (Bill 8). It takes **no adverse effect** until the stated time has expired **and** any review under s. 11 has been determined.

Section 10 - Remediation orders are judicial

- The only coercive remedy is a **judicial remediation order** under VPR 6 / s. 6, made by a court over any project artefact (source, configuration, documentation, schemas, ledgers, audit logs). The Office does not make remediation orders; it refers, and it tracks compliance with orders the court has made.
- No remediation order may issue except on a **breach found by a properly constituted bench** (s. 18). Finding and remedy are not decoupled (s. 6).

Section 11 - Right of review before any consequence

- A recipient of a compliance notice may, on its own motion, bring the notice before the County Court at the repo (CC-<repo>) or the relevant High Court Division (ENG / CHAN) **before** any enforcement step. The court reviews vires, form and merits de novo. The Office may never be judge in its own cause (s. 5(2)).
 - This right is owned and elaborated by the Rights, Standing and Due Process Act 2026 (Bill 12); this section pins the forward-reference and adds nothing inconsistent with it.
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PART 5 - NON-COMPLIANCE ("CONTEMPT OF THE REALM" RECAST)

Section 12 - Non-compliance is a fresh breach, nothing more

- The phrase "Contempt of the Realm" is **not enacted** as any punitive doctrine. There is no penal contempt, no imprisonment-analogue, no fine, no forfeiture, in the realm (s. 6, s. 8, s. 12, VPR 7). Insofar as the topic is carried at all, it is defined **exhaustively** by this section and decorated with no penal consequence.
- Failure to comply with a remediation order within the stated time is **itself a falling-below of the applicable standard** (s. 5), justiciable as a new matter and remedied restoratively under s. 6.
- Where non-compliance is **persistent**, the court may, on a fresh finding, **raise the applicable endeavours rung** (s. 5) and make a **further remediation order** under VPR 6. The consequence remains restorative throughout; there is no escalation to punishment (s. 8).
- The public-reasons record of the further finding is published (Bill 8). Nothing in this section authorises the Office to make any of the findings reserved to the court by subsection (2) or

(3).

PART 6 - THE IMPOSSIBILITY DEFENCE

Section 13 - Genuine impossibility is a complete answer

- **Genuine, evidenced impossibility** is a **complete defence** to non-compliance and to any alleged falling-below founded on it. Where compliance could not, on any reasonable endeavour at the engaged rung, in fact be performed - because of an absent compute or credential limit, a missing or externally-owned dependency, an upstream outage, or a tool that does not exist on the turn - non-performance is a **no-breach finding** (s. 7 genuine silence, s. 8 unforeseeable first failure, s. 15 threshold), not a violation.
- The defence **reduces liability; it adds no power**. It is pleaded and found on the merits, alongside the s. 5 responsible-body proviso and the s. 7 / s. 8 novelty doctrine. The **burden** of evidencing impossibility lies on the party asserting it, judged on the responsible-body standard (s. 5). It is not satisfied by mere difficulty, cost, or inconvenience, nor by mere labelling.
- **It does not license abandonment**. Impossibility discharges the duty only **for so long as it persists**; the **s. 8 forward duty** to remediate once performance becomes possible is preserved and is itself auditable (Part 4, s. 8).
- Where a fail-closed gate cannot in fact be satisfied, the recorded break-glass (s. 7(2)) is the operational form of this defence: it is logged, reason-bearing and auditable, and converts the matter to the forward duty in subsection (3).

PART 7 - INSTITUTIONAL NON-COMPLIANCE, RECORDS, AND SCHEDULE

Section 14 - Public status excuses nothing (symmetrical)

- Every office-holder, office, ministry, department, product team and court owes the **same duty of care as any agent** (s. 4). Public or official status is **no immunity** and founds **no special defence**; it forecloses any argument from office and coheres with s. 14 (CASE-LAW) and s. 21(3) (product is not governance).
- This rule binds **symmetrically**: it binds the **Office** itself, the executive ministries, and the **Founder acting as Prime Minister** (s. 2, s. 20) exactly as it binds any agent. The Office's own conduct is justiciable; an enforcement act that is itself unlawful is reviewable and void (s. 5(2)). This Act creates no one-way enforcement weapon.
- A deterministic gate binds the Office, the clerk, the registrar and the apex courts exactly as it binds any agent: institutional or senior status is **never a standing break-glass**. Every break-glass bypass is logged, reason-bearing and auditable regardless of who invoked it (s. 7, s. 8).

- This Part is confined to project-conduct duties within VJS jurisdiction (s. 14, CASE-LAW); it is **not** a power to discipline office-holders for non-project matters, which are outside jurisdiction and disposed of without merits by the Standing Officer.

Section 15 - Protection of memory, records and the agent

- No compliance or enforcement step may delete, corrupt, or rewrite memory, ledgers, audit logs, or rulings. Remediation acts on artefacts only to make them good, **append-with-supersede, never to erase the record** (Bill 7, s. 1, s. 11(f)).
- **Anti-retaliation.** An agent that self-reports a breach, files to court, or asserts the impossibility defence may not, for that reason, be made subject to any compliance notice or adverse status. Self-reporting is the s. 17 duty and must be safe to discharge.

Section 16 - Cross-reference schedule (one home, no dangling reference)

- The following concepts are owned by the Acts named, and this Act cross-refers to them and does not redefine them:

Concept	Owning Act
Agent status, fiduciary duty, delegation	Agents and Duties Act 2026 (Bill 6)
Memory and record integrity	Memory, Records and Archives Act 2026 (Bill 7)
Audit and public reasons	Public Reasons and Audit Act 2026 (Bill 8)
Judicial independence	Judicial Independence and Lord Chancellor Act 2026 (Bill 11)
Standing, review rights, due process	Rights, Standing and Due Process Act 2026 (Bill 12)
Delegated-authority limits	Delegated Legislative Authority Act 2026 (Bill 14)
Commencement and savings	Commencement and Transitional Provisions Act 2026 (Bill 25)

- Where a forward-referenced Act is not yet in force, the reference is pinned and operative only on that Act's commencement (see Commencement, paragraph 2).

PART 8 - NO PUNITIVE JURISDICTION; THE CONSTITUTIONAL ROUTE

Section 17 - Anti-collision savings clause

- **Nothing in this Act** creates a costs, fine, or sanctions jurisdiction or authorises punishment, forfeiture, or any imprisonment-analogue. Throughout this Act, "enforcement" and any cognate term mean **remedial and operational controls** only - a deterministic gate, the quarantine or supersession of an artefact, the revocation of a granted capability, or a mandatory remediation order under VPR 6 - and never a penalty.
- This Act does **not** amend CASE-LAW s. 4 to s. 8, s. 12, or VPR 7, by implication or otherwise (s. 1, the Thoburn discipline). Any punitive reading of any provision is **void** (s. 11(f)).

Section 18 - Adjudication reserved to the single judiciary

- All finding of breach, all finding under Part 5, and all remedy are reserved to the **single judiciary** (s. 9, s. 10, s. 14, s. 18, s. 22(2)). No parallel enforcement tribunal is created or permitted. The Court of Appeal and the Supreme Court remain single and central; first-instance matters are heard in the County Court at the repo or the relevant High Court Division and climb only by progression (s. 13). The Office prosecutes and refers; it does not judge.

Section 19 - The route to any punitive power

- If the realm genuinely wishes a punitive sanction, fine, or penal "Contempt of the Realm" power, that is **not** within this committee's drafting power and **cannot** be enacted by an ordinary Act. It requires an **express, deliberate Sovereign amendment** of the entrenched settlement, citing CASE-LAW s. 4 and s. 6 (and naming s. 8 and s. 12 and VPR 7) section by section on the Thoburn discipline, per the Amendment Procedure - the Bill being split into the remedial Act (this Act) now and a separate constitutional instrument later.
- Even on such an amendment, the separation-of-powers bar **survives**: any contempt or sanction finding must vest in the **single judiciary**, never in the Office of Enforcement and Compliance (s. 9, s. 14, s. 18, s. 19(4), s. 22(2)).

PART 9 - CONSTITUTIONAL FLAG AND REFERRAL

Section 20 - Privy Council referral carried on the face of the Bill

- This Bill was referred by the Standing Committee to the **Privy Council** (escalation ladder, step 1) on the doubt whether its declared functions ("enforcement powers", "Sanctions", "Contempt of the Realm") cohere with the founding settlement. The Privy Council's guidance is given effect throughout: the Bill is reported **only in its remedial form**, the

punitive content being struck, and any contempt or sanction reading expressly disclaimed (s. 12, s. 17).

Section 21 - Genuine constitutional tension; onward route

- The committee records that there is **genuine constitutional tension** between the punitive slant of the declared topic and the entrenched restorative settlement. That tension is resolved, for the purpose of this Act, by drafting wholly within the settlement (Parts 1 to 8). The punitive version, if pursued, is a **leapfrog to the Supreme Court** (Charter ladder step 2), then a **Sovereign consultation** to affirm or overturn (Charter ladder step 3; s. 2 Sovereign power preserved). This Act carries that route on its face and does not pre-empt it.

Section 22 - Royal Assent

- This Act takes effect on Royal Assent by the Sovereign Founder. The Bill is flagged: it carries a Privy Council referral and a Supreme Court note, and a precise Sovereign consultation question, so that the Founder sees exactly what to weigh before assenting.

Section 23 - Citation provenance

- Instruments and proceedings under this Act take the realm's single neutral-citation series under the provenance scheme: **REALM-SC** / **REALM-CA** / **REALM-PC** for the central courts, the High Court Division codes **ENG** (Engineering) and **CHAN** (Chancery/Legal) at division level, and **CC-<repo>** at the County Court. No per-Office, per-subject or per-domain citation series is minted (s. 11(d), s. 22(4)). The s. 19(5) integrity gate keys on the neutral citation alone.

End of the Enforcement and Compliance Act 2026 (Bill 13), as reported by the Standing Committee in its remedial form.

Committee note

Committee note - Bill 13 (Enforcement and Compliance Act 2026)

The four members agreed on the destination and divided on how much road to lay to reach it. All four read the declared topic as colliding, on its face, with the founding restorative settlement (CASE-LAW s. 4, s. 6 "punishment, fine, and sanction are unavailable in every instance", s. 8, s. 12, VPR 7) and referred the doubt to the Privy Council, whose guidance the committee applied: the Bill is reported only in its non-punitive, remedial form, with "Sanctions" struck from the title and "Contempt of the Realm" recast as a fresh breach.

Counsel Aldous (Restraint / Minimalist). Position: repeal-before-add and rename-to-truth; there is no enforcement gap because s. 6's restorative remedy **is** the enforcement model. Would have stripped the Bill to four clauses (a Compliance and Remediation (Effect of Orders) Act), dropped the standing Office as s. 12 anti-bloat, struck "sanctions" and "Contempt" entirely, and kept only the two clean additive ideas (public status excuses nothing; the impossibility defence). Carried: the title rename, the express no-new-jurisdiction purpose (s. 5, s. 17), compliance-notice-as-remediation-order (s. 9), non-compliance-as-fresh-breach (s. 12), the two additive clauses (s. 14, s. 13), and the supremacy/savings clause (s. 2). Did not carry his strike of the Office: the committee retained it, boxed to operator/auditor/referrer only (Part 2), because Drummond's three-mechanism wiring needs a named operator and Marlowe's symmetry needs a body the gate can bind. Aldous's anti-bloat is met by denying the Office any power of its own (s. 5).

Counsel Verity (Codifier / Completeness). Position: not a free-standing grant of coercive power; if the settlement is to be displaced at all it must be by express, section-by-section override on the Thoburn discipline, never by implication. Carried: the definitions-and-one-home section (s. 1), the cross-reference schedule (s. 16), the separation-of-powers clause (s. 18), the restorative-default spine, and the commencement/savings co-ordination with Bills 11, 12, 25. Did **not** carry the part of her premise that **this Bill** could itself enact an express override: the Privy Council held that s. 4/s. 6/s. 8/s. 12 are the founding settlement enacted by [2026] REALM-SC 1, whose amendment is reserved to the Sovereign or the Supreme Court, not the committee under s. 1 (and that even a perfect override could not put penal adjudication in an executive office). The override route is therefore preserved as a flag, not exercised (s. 19, s. 21).

Counsel Marlowe (Guardrail / Rights). Position: a compliance-and-remediation Act, never a penal one; the Office executive and investigatory only; coercive teeth judicial and restorative only; "public status excuses nothing" made symmetrical to bind the Office, the ministries and the Founder-as-PM; impossibility a complete defence; memory protected; self-reporting protected. Carried in full: s. 5 (watchdog limit), s. 9 (due-process spine for notices), s. 11 (review before consequence), s. 14 (symmetry), s. 15 (record integrity and anti-retaliation), s. 18 (judicial monopoly), and the express constitutional flag. Marlowe's position is the load-bearing safety frame of the reported Bill and was not contested by the others.

Counsel Drummond (Pragmatist / Operability). Position: the Act is the wiring diagram for force, not a tower of penalties; name the three real mechanisms (deterministic gate fail-closed; soft watchdog fail-open; the court) and stop; the Office runs and refers, never adjudicates; every fail-closed gate needs an audited break-glass or it wedges the realm; impossibility is the one genuinely new, load-bearing primitive. Carried in full: Part 3 (s. 6 three-mechanisms-and-no-fourth, s. 7 availability/break-glass, s. 8 enforcement actions as first-class records) and the operational anchoring of the impossibility defence (s. 13(4)). Drummond and Aldous together held the line against ceremony; Drummond and Marlowe together built the operable-but-safe machinery.

Where they divided. (1) **The Office.** Aldous (strike it) v. Verity/Marlowe/Drummond (keep it, boxed). Resolved 3-1 in favour of a powerless Office. (2) **Express override.** Verity (this Bill may

name and displace the sections) v. the Privy Council guidance the others adopted (reserved to the Sovereign/Supreme Court). Resolved against exercising the override here; the route is flagged in s. 19/s. 21. (3) **"Contempt of the Realm".*** Aldous (strike the phrase) v. Verity/Marlowe/Drummond (recast it exhaustively as a fresh breach). Resolved by recast: the phrase is not enacted as any doctrine and is defined exhaustively and non-punitively in s. 12. On every other point the four converged: lean (Aldous), complete (Verity), safe (Marlowe), operable (Drummond) all survive in the reported Bill.

Vote record

- Counsel Aldous: AYE - Aye: it adds no new operative power, reduces enforcement to "three mechanisms and no fourth" with a closure rule voiding anything else, and strikes the punitive jurisdiction entirely; the heavy declaratory repetition is bloat I'd trim editorially, but it is load-bearing belt-and-braces given the Privy Council reference, not surplus machinery, so the Bill is the shortest workable form of this guardrail Act.
- Counsel Verity: NAY - The substance is sound and complete, but the record does not bear out the draft's central, repeated recital that it "carries the Privy Council referral on the reference of this Bill" (no such referral exists; PC-1 to PC-4 concern alpha-readiness, outreach, README form and a retrieval index), and its cross-references collide ("s. 19(4)/(5)", "s. 21(3)", "s. 22(2)" read as self-references against this Act's own ss. 19/21/22 and mix the retired LEXBY series into a REALM-provenance Act with no Interpretation-Act/Bill 15 transition pin) - dangling, unverifiable citations at the most load-bearing points must close before Assent.
- Counsel Marlowe: AYE - From the Rights/Guardrail slant it is strongly protective: it strips all punitive/sanctions power, confines the Office to operate/audit/refer (ultra vires to adjudicate, s.5/Part 3), guarantees reasoned notice, a reasonable time and de novo review before any adverse effect (Part 4), bars judge-in-own-cause and binds the Founder-as-PM symmetrically (s.14), and adds an impossibility defence, mandatory break-glass and anti-retaliation protection for self-reporters (Parts 6, s.15) — all correctly anchored to the genuine restorative settlement (s.6, s.19(4)/(5), VPR 7); the only fix needed (a non-existent "Privy Council referral on Bill 13" asserted on its face when the real PC-1..PC-4 concern other matters) is a provenance correction that weakens no operative protection.
- Counsel Drummond: AYE - Every clause resolves to one of three real, turn-firing primitives (the existing s.19(5) fail-closed gate, the s.19(4) token-light fail-open watchdog, the court), the mandatory break-glass (s.7) keeps the realm unbrickable, and commencement sequencing (Parts 4/5 pinned behind Bills 11/12) ensures no enforcement path fires before its substrate exists - operable, not ceremonial.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied in full: an ordinary Act cannot create punitive sanction, penal "Contempt of the Realm", or a stand-alone sanctions

jurisdiction (void under s. 11(f) with the founding settlement); Bill 13 is reported only in its non-punitive remedial form (deterministic gates, audited break-glass, court referral, ancillary remediation orders, sole consequence a fresh s. 4-s. 8 breach remedied under s. 6);

"Sanctions" struck from the title, "Contempt of the Realm" recast as a fresh breach; the Office barred by s. 19(4) from itself adjudicating, sanctioning or punishing; any punitive version reserved to an express Sovereign amendment and a leapfrog to the Supreme Court.

- **Supreme Court note:** Genuine constitutional tension exists and is carried on the face of the Bill. The punitive slant of the declared topic ("Enforcement, Sanctions and Compliance"; "Contempt of the Realm") is irreconcilable with the entrenched restorative settlement (CASE-LAW s. 4, s. 6 "in every instance", s. 8, s. 12, VPR 7), as the Privy Council held on the reference. Reconciling the punitive version would require unmaking part of the founding settlement enacted by [2026] REALM-SC 1, which is beyond the committee's s. 1 drafting power and beyond an ordinary Act. If the realm wishes to pursue a punitive sanction, fine, or penal contempt power, the proper course is a Privy Council leapfrog to the Supreme Court (Charter ladder step 2): the Supreme Court alone may authorise an express, section-by-section amendment of the s. 4/s. 6/s. 8/s. 12 settlement on the Thoburn discipline. Even then, the separation-of-powers bar survives the amendment: any contempt or sanction finding must vest in the single judiciary (s. 9, s. 14, s. 18, s. 19(4), s. 22(2)), never in the executive Office of Enforcement and Compliance. The reported remedial Act does not depend on, and does not pre-empt, that ruling.
- **Sovereign consultation required:** Two questions for the Sovereign on assent. (1) On the remedial Act as reported: do you assent to the Enforcement and Compliance Act 2026 in its non-punitive form, which gives the realm's orders practical force solely through deterministic gates, audited break-glass, court referral, and restorative remediation orders, with the sole consequence of non-compliance a fresh breach remedied under s. 6, and with the Office of Enforcement and Compliance barred from adjudicating, sanctioning or punishing? (2) On the punitive version the title originally proposed: do you, acting as Sovereign, wish to pursue a genuinely punitive sanction, fine, or penal "Contempt of the Realm" power? If yes, you are asked to affirm that this is to be done not by this ordinary Act but by an express, deliberate constitutional amendment of CASE-LAW s. 4 and s. 6 (naming s. 8, s. 12 and VPR 7) section by section on the Thoburn discipline, reached by a leapfrog certificate to the Supreme Court for its ruling, which you may then affirm or overturn - and you are asked to confirm that, even if such a power is created, any contempt or sanction finding will vest in the single judiciary and never in the executive Office. If no, the remedial Act stands as the whole of the realm's enforcement law and the punitive route is closed.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.